

		Plaintiff shall provide notice.
3	Whisler vs. General Motors, LLC. 2025-01461222	Motion to Compel Production CCP 871.26 states in relevant part: (a) This section only applies to a civil action seeking restitution or replacement of a motor vehicle pursuant to Section 871.20. (b) Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h). (c) Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours, of the following deponents: (1) The plaintiff. (2) The defendant, and if the defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. This deposition shall be limited to the topics listed in subdivision (i). (d) Within 90 days after filing of the answer or other responsive pleading, all parties shall schedule a mediation to occur within 150 days after filing of the answer or other responsive pleading with a court-appointed or private mediator. ... (e) Except as provided in subdivisions (b) and (c), all other discovery shall be stayed until mediation is concluded. If the case is not resolved at the conclusion of mediation, standard discovery procedures prescribed in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedures shall apply, including an additional deposition of the plaintiff and the defendant and, if the

	defendant is not a natural person, the person who is most qualified to testify on the defendant's behalf. (f) The plaintiff shall provide the following documents to all other parties pursuant to the timeline set forth in subdivision (b): (1) Sales or lease agreement. (2) Copy of current registration. (3) Any finance information, account information, including payment history and estimated payoff amount, and any loan modification agreements. (4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found. (5) Documents detailing all underlying claimed incidental damages. (6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession. (7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. (g) The plaintiff shall provide the following information to all other parties pursuant to the timelines set forth in subdivision (b): (1) Mileage of the motor vehicle as of the date of the disclosure described in subdivision (b). (2) Primary driver or drivers of the motor vehicle. (3) If the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business. (4) Whether the plaintiff is still in possession of the motor vehicle. (5) Address where the motor vehicle is located. (6) Whether the plaintiff is an active or prior member of the Armed Forces. (7) Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.
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		(8) Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification. (9) Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found. (10) Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. (11) Any need for an interpreter for purposes of a deposition. ... (j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows: (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b). ... (5) Notwithstanding paragraph (3) of subdivision (o) of Section 6068 of the Business and Professions Code, the court may, in its discretion, require an attorney who is sanctioned pursuant to this subdivision to report the sanction, in writing, to the State Bar of California within 30 days of the imposition of the sanction. ... Moving Party's (MP) evidence shows that along with its demurrer filed on 5-27-25, MP also sent a letter to plaintiff's counsel advising that this action was subject to these initial lemon law disclosure statutes. (Rodriguez Decl., Para. 4, Ex. A.) Responding Party (RP) plaintiff does not
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		dispute that this action is subject to CCP 871.26. MP's evidence also shows that while it appeared in this action on 5-27-25, as of the filing of the motion on 3-13-26, plaintiff had not provided the required disclosures. (Rodriguez Decl., Paras. 3-6.) In response, RP plaintiff contends the motion is moot because he has produced responsive documents and the delay was not willful. Both contentions are unsupported. RP attorney's declaration states in relevant part: 5. On July 29, 2026, Plaintiff served his initial disclosures and the responsive documents on GM. Attached hereto as Exhibit A is a true and correct copy of the email correspondence transmitting Plaintiff's production to GM's counsel. Attached hereto as Exhibit B is a true and correct copy of the documents Plaintiff produced to GM. 6. The delay in serving Plaintiff's disclosures was not intentional. Upon determining that the initial disclosures remained outstanding, Plaintiff's counsel promptly reviewed the file, gathered the available responsive materials, and served Plaintiff's initial disclosures and responsive documents before the hearing. 7. Plaintiff has produced the responsive documents presently within his possession, custody, or control and is not intentionally withholding any responsive documents from GM. (Smith Decl. in support of Opp, Paras. 5-7.) RP's Opp shows that the only document produced was a Carfax report for the subject vehicle. (RP Ex. B.) There is no evidence that RP has produced any of the other documents required by CCP 871.26(f), set forth above, nor any explanation why these other required documents were not produced. RP attorney avers that plaintiff "has produced the responsive documents presently within his possession, custody, or control" (Smith
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		Decl., Para. 7), but this conclusory assertion appears insufficient. RP provides no explanation why other documents required by CCP 871.26(f) were not, or cannot, be produced. For example, even if RP does not have payment records (CCP 871.26(f)(3)) in his personal possession, there is no explanation why he could not obtain them from his financial institution. Similarly, registration records (CCP 871.26(f)(2)) can be obtained from the DMV. (See <i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496, 1504 [in the regular discovery context, “a party has a general duty to conduct a reasonable investigation to obtain responsive information ... and must furnish information from all sources under his or her control”].) Finally, RP has not provided any evidence that he provided the information required by CCP 871.26(g) at all. Accordingly, RP fails to show that the motion is moot, so the Court grants the motion. RP’s Opp also fails to show “good cause” why statutory penalties should not be imposed. (CCP 871.26(j)). This action has been pending for well over a year, MP requested production of the documents in May 2025, and the instant motion was filed in March 2026. However, RP apparently made no effort to comply with his statutory disclosure obligations until shortly before the Opposition was due, and even then, only produced a single document. Accordingly, the Court also imposes the \$1,500 sanctions required by CCP 871.26(j). RULING: Defendant General Motors LLC’s motion to compel initial disclosures, and for monetary sanctions, is GRANTED. (Code Civ. Proc., § 871.26.) Plaintiff Clinton Whisler shall produce the documents and information required by Code Civ. Proc., § 871.26, subds. (f) and (g), to moving party within 10 days.
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4	RV 2020, LLC vs. Peterson 2026-01553542	Motion – Other (to Compel Judicial Reference and Stay Litigation) Defendants RV RES I, LLC and George Peterson’s motion for judicial reference is GRANTED in part and DENIED in part. (Code Civ. Proc., § 638 [authorizing motion].) Defendants’ objection no. 3 to the Sussman Declaration is SUSTAINED (improper opinion). Defendants’ remaining objections are OVERRULED. Both parties’ requests for judicial notice are GRANTED. (Evid. Code 452, subd. (d) [court records].) With the exception of the stipulation and order filed on 8-6-25 in Case No. 2025-01487927, judicial notice is limited to the fact that the documents were filed, but not of the truth of their contents. (In re Vicks (2013) 56 Cal.4th 274, 314 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files;” emphasis in original; internal citation omitted]; see also Williams v. Wraxall (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of truth of documents in court files ordinarily limited to orders, statements of decision, and judgments].) The motion is GRANTED as to defendant RV RES I, LLC. The court finds that there is an Operating Agreement between the parties requiring disputes be resolved by judicial reference, and that plaintiff’s claims in this action involve this defendant’s performance